

25STCV19432 25STCV19432

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Case Number: 25STCV19432 Hearing Date: June 24, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: June 24, 2026

CASE NUMBER: 25STCV19432

CASE NAME: Agripina Gil v. General Motors, LLC

MOVING PARTY: Defendant, General Motors, LLC

OPPOSING PARTY: Plaintiff, Agripina Gil

PROCEEDING: DEMURRER

RULING SUMMARY: The Demurrer to the Fifth Cause of Action is overruled. Defendant shall file its Answer within 10 days. The Court continues the Case Management

Conference to, and sets an Order to Show Cause re Filing of Answer for,
_____, 2026, at 8:30AM.

Background

This is a lemon law case. On July 19, 2024, Agripina Gil ("Plaintiff") entered into a warranty contract with General Motors, LLC ("Defendant") regarding a 2024 GMC Sierra 1500 (Vin No. 3GTPHCEK2RG330590) ("Subject Vehicle").

On June

27, 2025, Plaintiff filed a complaint against Defendant alleging: (1) violation of Civil Code Section 1793.2(d); (2) violation of 1793.2(b); (3) violation of 1793.2(a)(3); (4) breach of the implied warranty of merchantability and (5) fraudulent inducement-concealment.

On

October 9, 2025, Defendant filed the demurrer. On December 11, 2025, Plaintiff filed an opposition. On December 18, 2025, Defendant filed a reply.

On February 24, 2026, Plaintiff filed a reply. The Court will disregard this reply as it is improper.

Request
for Judicial Notice

The court may take judicial notice of records of any court of record of the United States. (Evid. Code, § 452(d)(2).) However, the court may only judicially notice the existence of the record, not that its contents are the truth. (Sosinsky v. Grant (1992) 6 cal.app.4th 1548, 1565.)

;

The court may take judicial notice of “official acts of the legislative, executive, and judicial departments of the united states and of any state of the united states,” “[r]ecords of (1) any court of this state or (2) any court of record of the united states or of any state of the united states,” and “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subds. (c), (d), and (h).) “taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.” (joslin v. H.a.s. ins. Brokerage (1986) 184 cal.app.3d 369, 374.)

Defendant requests the Court take judicial notice of the Second Amended Complaint in Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828. (Reply, Allison Decl., ¶ 2, Ex. A.)

The Court grants Defendant’s request for judicial notice,

only as to the existence of the Second Amended Complaint and not for the truth of its contents.

Demurrer[1]

I. Legal Standard

Where

pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) In evaluating a demurrer, the court accepts the complainant's properly pled facts as true and ignores contentions, deductions, and conclusory statements. (Daar v. Yellow Cab Co. (1976) 67 Cal.2d 695, 713; Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Moreover, the court does not consider whether a plaintiff will be able to prove the allegations or the possible difficulty in making such proof. (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Ibid.)

II. Discussion

a.

Fifth Cause of Action: Fraudulent
Inducement – Concealment

Defendant

demurs to Plaintiff's fifth cause of action for fraudulent inducement – concealment arguing Plaintiff has not stated facts sufficient to plead the cause of action and the cause of action is barred by the economic loss rule and independent tort principle.

i.

Failure to State a Cause of Action

To state a claim for fraudulent

inducement-concealment, Plaintiffs must allege: (1) the defendant “concealed or suppressed a material fact,” (2) the defendant was “under a duty to disclose the fact to the plaintiff,” (3) the defendant “intentionally concealed or suppressed the fact with the intent to defraud the plaintiff,” (4) the plaintiff was “unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact,” and (5) “as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*BiglerEngler v. Breg, Inc.*, (2017) 7 Cal.App.5th 276, 310-311; *Rattagan v. Uber Technologies, Inc.*, (2024) 17 Cal.5th 1, 40.)

Absent

a fiduciary relationship between the parties, a duty to disclose can arise in only three circumstances: (1) the defendant had exclusive knowledge of the material fact; (2) the defendant actively concealed the material fact; or (3) the defendant made partial representations while also suppressing the material fact. (*BiglerEngler*, supra, 7 Cal.App.5th at p. 311; *LiMandri v. Judkins*, (1997) 52 Cal.App.4th 326, 336.) However, the duty to disclose only arises under any of these circumstances if there is “the necessary relationship giving rise to a duty to disclose as a ‘transaction’ between the plaintiff and defendant” (*Bigler-Engler*, supra, 7 Cal.App.5th at p. 311; *Rattagan v. Uber Technologies, Inc.*, supra, 17 Cal.5th at 40 [requiring a “preexisting relationship between the parties, such as ‘between seller and buyer ... or parties entering into any kind of contractual agreement.’”] *Warner Construction Corp. v. City of Los Angeles*, (1970) 2 Cal.3d 285, 294 [“In transactions which do not involve fiduciary or confidential relations”]; *Hoffman v. 162 North Wolfe LLC*, (2014) 228 Cal.App.4th 1178, 1187–89 [rejecting concealment claim where plaintiffs “were not involved in a transaction with the parties they claim defrauded them”]; *LiMandri*, supra, 52 Cal.App.4th at p. 337 [“such a relationship can only come into being as a result of some sort of transaction between the parties”].)

A concealment cause of

action has a more relaxed specificity requirement as compared to a claim based on affirmative misrepresentations; the rule of specifically pleading how, when, where, to whom and by what means, misrepresentations were communicated is intended to apply to affirmative misrepresentations and not to concealment. (*Alfaro v. Community Housing Improvement System & Planning Assn, Inc.* (2009) 171 Cal.App.4th 1356, 1384.) The relaxed

standard relies on the natural logic that a plaintiff cannot specifically plead a fraud committed by omission, because there is no “how, when”, etc., for a plaintiff identify. (Id.)

Plaintiff argues that the warranty contract with Defendant creates a sufficient transactional relationship, citing *Dhital v. Nissan North America, Inc.* (Dhital v. Nissan North America, Inc., (2022) 84 Cal.App.5th 828, 844.) The court stated that the plaintiffs’ allegations were sufficient to overcome the defendant’s argument that there was no buyer-seller relationship giving rise to a duty to disclose. (Id.) Moreover, the plaintiffs sufficiently alleged that the requisite buyer-seller relationship existed because the plaintiffs had alleged that they bought the car from a Nissan dealership, Nissan backed the purchase with an express warranty, and Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to customers. (Id.)

First, Plaintiff does allege the existence of a material fact concealed. Plaintiff alleges that Defendant failed to disclose the transmission defect to them at the time they purchased the Subject Vehicle. (Compl., ¶ 46.) The court in *Dhital* found that plaintiffs who allege the effects of a defect on a class of a certain part sufficiently allege a defect in a particular vehicle’s part. (Dhital, supra, 84 Cal.App.5th 828, 844 [“plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function...We decline to hold... that plaintiffs were required to include in the SAC more detailed allegations about the alleged defects in the CVT transmissions.”].) Thus, Plaintiff’s allegation as pled is sufficient as to the material defect element.

Second, the Complaint alleges a contractual relationship between the parties. Plaintiff alleges she entered into a warranty agreement with Defendant regarding the Subject Vehicle. (Compl., ¶ 6.) This warranty contract can form the basis of a transactional relationship. (See *LiMandri v. Judkins* (1997) 52 Cal.App.4th at p. 337.) Thus, Plaintiffs alleged a direct transactional relationship with Defendants which imposed a duty on Defendants to disclose any known vehicle defects.

Third, Plaintiff sufficiently pleads that Defendant had exclusive knowledge of the transmission defect

through non-public pre-release testing data, consumer complaints, and other internal sources. (Compl., ¶ 49.) Defendant cites *Roe v. Ford Motor Co.*, Case No. 2:18-cv-12528-LJMAPP, 2019 WL 3564589, at *6 (E.D. Mich. Aug. 6, 2019), to argue that Plaintiff must state what “pre-releasing testing data” revealed and/or tie said data to the alleged defects. (Demurrer p. 13.) However, this case comes from the United States District Court for the Eastern District of Michigan. Therefore, this case and its rulings do not constitute precedent in this matter. The Court will not require that level of detail at the pleading stage, and instead applies the principles established in *Dhital*, supra, 84 Cal.App.5th at p.844.

Plaintiff

has also sufficiently pled that Defendant actively concealed the transmission defects. (Compl., ¶¶ 51-54.)

Last,

Plaintiff sufficiently pled actual and justifiable reliance. (Compl., ¶ 66.) The alleges that, “[h]ad Plaintiff known that the Vehicle, and its 10-speed transmission, were defective prior to and at the time of sale, Plaintiff would not have purchased the Vehicle.” (Compl., ¶ 55.) This line demonstrates that Plaintiff relied upon Defendant’s omissions and/or concealment, not the warranty contract, and that Plaintiff would not have purchased the vehicle if he had been aware of existing, known defects.

Therefore,

Plaintiff has sufficiently stated a cause of action for fraudulent inducement – concealment.

ii.

Economic Loss Rule

The economic loss rule provides: “[W]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’ losses.” (Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) The rule “requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise.” (Id.)

However, the Court in Dhital v. Nissan North America, Inc., expressly held that fraudulent inducement by concealment claims are not barred by the economic loss rule. (Dhital v. Nissan North America, Inc., (2022) 84 Cal.App.5th 828, 843-45.)

Here, based upon the facts alleged, the economic loss rule does not apply to Plaintiff's claims.

Accordingly, Defendant's demurrer to the fifth cause of action is OVERRULED.

Conclusion

The Demurrer to the Fifth Cause of Action is overruled. Defendant shall file its Answer within 10 days. The Court continues the Case Management Conference to, and sets an Order to Show Cause re Filing of Answer for, _____, 2026, at 8:30AM.

Date: June
24, 2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court

[1]
Pursuant to Code Civ. Proc. § 430.41, the meet
and confer requirement has been met.